

1 ENGROSSED SENATE AMENDMENT
TO

2 ENGROSSED HOUSE
3 BILL NO. 3403

By: Patzkowsky and Alonso-
Sandoval of the House

4 and

5 Stewart of the Senate

6

7

8 An Act relating to environment and natural resources;
9 creating the Oklahoma Biosolids Land Application
10 Research Pilot Program Act; requiring the Department
11 of Environmental Quality to administer Pilot Program
12 in cooperation with *** funding; requiring deposit of
13 funds in certain revolving fund; creating the
14 Oklahoma Biosolids Land Application Research Pilot
15 Program Act Revolving Fund; describing fund;
16 providing for content of fund; providing for deposits
17 and expenditures; providing for codification; and
18 providing an effective date.

14

15 AUTHOR: Add the following Senate Coauthor: Green

16 AMENDMENT NO. 1. Page 1, strike the title, enacting clause and
17 entire bill and insert

18 "An Act relating to environment and natural
19 resources; creating the Oklahoma Biosolids Land
20 Application Research Pilot Program Act; providing
21 short title; requiring the Department of
22 Environmental Quality to administer the Oklahoma
23 Biosolids Land Application Research Pilot Program in
24 cooperation with Oklahoma State University; providing
for expiration of the pilot program; listing
requirements for the pilot program; requiring
electronic submission of certain annual report;
listing requirements for annual report; authorizing
partnerships with private landowners; limiting
liability; making certain exemption; requiring

1 certain documentation be kept; authorizing continued
2 application upon certain finding; requiring
3 utilization of certain technology; prohibiting land
4 application of certain materials upon certain date;
5 prohibiting issuance of certain permits; requiring
6 cessation of certain actions by certain dates;
7 requiring plan submission by certain permittees by
8 certain date; directing rule promulgation; defining
9 term; authorizing funding; requiring deposit of funds
10 in certain revolving fund; creating the Oklahoma
11 Biosolids Land Application Research Pilot Program Act
12 Revolving Fund; describing fund; providing for
13 content of fund; providing for deposits and
14 expenditures; providing for codification; and
15 providing an effective date.

16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 2-10-1120 of Title 27A, unless
19 there is created a duplication in numbering, reads as follows:

20 This act shall be known and may be cited as the "Oklahoma
21 Biosolids Land Application Research Pilot Program Act".

22 SECTION 2. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 2-10-1121 of Title 27A, unless
24 there is created a duplication in numbering, reads as follows:

25 A. There is hereby created at Oklahoma State University (OSU)
26 the Oklahoma Biosolids Land Application Research Pilot Program. The
27 pilot program shall be administered by the Department of
28 Environmental Quality (DEQ) in cooperation with the OSU Division of
29 Agricultural Sciences and Natural Resources and in coordination with
30 the OSU College of Engineering, Architecture and Technology, the OSU

1 Department of Environmental Science, and the OSU Cooperative
2 Extension Service. The pilot program shall operate for an initial
3 three-year period.

4 B. The pilot program shall:

5 1. Identify and approve study plots on agricultural lands,
6 including, but not limited to, OSU-owned research farms and, as
7 appropriate, cooperating private farms and farms that have a history
8 of using biosolids;

9 2. Develop biosolids application protocols, including:

- 10 a. nutrient content evaluation,
- 11 b. pathogen and contaminant screening, including
- 12 perfluoroalkyl and polyfluoroalkyl substances (PFAS),
- 13 heavy metals, and pharmaceuticals,
- 14 c. application rates, and
- 15 d. soil amendment practices;

16 3. Conduct agronomic research, including crop yield impacts,
17 soil health changes, and nutrient cycling;

18 4. Conduct environmental impact studies, including:

- 19 a. surface and groundwater monitoring,
- 20 b. soil residual testing, and
- 21 c. air quality, odor, and vector considerations;

22 5. Assess regulatory models, including best management
23 practices, permitting options, and compliance structures suitable
24 for this state;

1 6. Coordinate with the DEQ and may utilize biosolids supplied
2 by municipal wastewater treatment facilities of this state that meet
3 DEQ and United States Environmental Protection Agency (EPA)
4 standards; and

5 7. Provide outreach and education to farmers, ranchers,
6 conservation districts, and municipalities in this state through OSU
7 Extension programs.

8 C. An electronic report shall be submitted annually to the
9 Governor, the President Pro Tempore of the Senate, the Speaker of
10 the House of Representatives, and the DEQ regarding findings, data,
11 and recommendations. Annual reports shall be submitted no later
12 than December 1 and include:

- 13 1. Agronomic outcomes;
- 14 2. Environmental monitoring results;
- 15 3. Risk assessments;
- 16 4. Recommendations for statewide standards or rules; and
- 17 5. Cost-benefit analysis for farmers and municipalities.

18 D. OSU may partner with private agricultural landowners who
19 volunteer to participate in research trials. OSU shall secure
20 written consent, ensure DEQ compliance, and provide guidelines for
21 application, monitoring, and sampling. No landowner shall be held
22 liable for environmental impacts resulting solely from adherence to
23 OSU protocols developed under the pilot program.

1 E. Biosolids applied under the pilot program shall be exempt
2 from state permitting otherwise required under environmental or land
3 application rules, only to the extent necessary to conduct
4 controlled research, and only when research protocols meet or exceed
5 DEQ and EPA requirements. OSU shall coordinate with the DEQ to
6 ensure proper recordkeeping and transport documentation.

7 F. The pilot program may be funded by legislative
8 appropriations, federal research grants, municipal contributions,
9 private or industry research partnerships, or in-kind contributions
10 of biosolids or laboratory services. Funds for administering the
11 pilot program shall be deposited into the Oklahoma Biosolids Land
12 Application Research Pilot Program Act Revolving Fund created in
13 Section 3 of this act.

14 G. 1. Upon completion of the three-year pilot program, if the
15 findings, data, and recommendations in the reports required pursuant
16 to subsection C of this section indicate that land application of
17 biosolids is considered to be safe and cost-effective, the DEQ shall
18 continue to issue new permits and renewals for such application of
19 biosolids in accordance with the report recommendations.

20 2. Municipalities shall require the use of microbial
21 biotechnology approved by the DEQ to reduce the volume of biosolids
22 at a wastewater treatment plant. Additionally, such municipalities
23 shall adopt technology approved by the DEQ to reduce biosolid odor
24 and dry solid matter at a wastewater treatment plant.

1 H. 1. Upon completion of the three-year pilot program, if the
2 findings, data, and recommendations in the reports required pursuant
3 to subsection C of this section indicate that land application of
4 biosolids would be a detriment to the health and safety of this
5 state, such application shall be prohibited on and after December 1,
6 2029, and the DEQ shall not issue any new permit for the land
7 application of biosolids. Renewal of permits for land application
8 shall be left to the discretion of the DEQ for the purpose of aiding
9 municipalities with the reduction of land application of biosolids.

10 2. Not later than December 1, 2027, all persons or entities
11 permitted to land apply biosolids shall reduce the amount of such
12 material land applied by at least twenty-five percent (25%).

13 3. Not later than December 1, 2028, all persons or entities
14 permitted to land apply biosolids shall reduce the amount of such
15 material land applied by at least fifty percent (50%).

16 4. Not later than December 1, 2029, any person or entity
17 permitted to land apply biosolids shall submit a plan for full
18 cessation of such actions to the DEQ. The plan shall be compiled
19 and submitted in the form and manner prescribed by the DEQ.

20 I. The DEQ shall promulgate rules to implement the provisions
21 subsections G and H of this section.

22 J. For the purposes of this section, "biosolids" means treated
23 sewage sludge derived from municipal or domestic wastewater
24 treatment plants.

1 SECTION 3. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 2-10-1122 of Title 27A, unless
3 there is created a duplication in numbering, reads as follows:

4 There is hereby created in the State Treasury a revolving fund
5 for the Department of Environmental Quality to be designated the
6 "Oklahoma Biosolids Land Application Research Pilot Program Act
7 Revolving Fund". The fund shall be a continuing fund, not subject
8 to fiscal year limitations, and shall consist of all monies received
9 by the Department from appropriations, apportionments, donations,
10 and federal grants received for the purpose of conducting the
11 provisions of the Oklahoma Biosolids Land Application Research Pilot
12 Program created pursuant to Section 2 of this act. All monies
13 accruing to the credit of the fund are hereby appropriated and may
14 be budgeted and expended by the Department for the purpose provided
15 for in this section. Expenditures from the fund shall be made upon
16 warrants issued by the State Treasurer against claims filed as
17 prescribed by law with the Director of the Office of Management and
18 Enterprise Services for approval and payment.

19 SECTION 4. This act shall become effective November 1, 2026."
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1 Passed the Senate the 22nd day of April, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives

1 ENGROSSED HOUSE
2 BILL NO. 3403

By: Patzkowsky and Alonso-
Sandoval of the House

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7 An Act relating to environment and natural resources;
8 creating the Oklahoma Biosolids Land Application
9 Research Pilot Program Act; requiring the Department
10 of Environmental Quality to administer Pilot Program
11 in cooperation with Oklahoma State University;
12 providing for expiration of the Pilot Program;
13 listing requirements for the Pilot Program; requiring
14 submission of certain annual report; listing
15 requirements for annual report; authorizing
16 partnerships with private landowners; limiting
17 liability; making certain exemption; requiring
18 certain documentation be kept; authorizing funding;
19 requiring deposit of funds in certain revolving fund;
20 creating the Oklahoma Biosolids Land Application
21 Research Pilot Program Act Revolving Fund; describing
22 fund; providing for content of fund; providing for
23 deposits and expenditures; providing for
24 codification; and providing an effective date.

18 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

19 SECTION 5. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 2-10-1120 of Title 27A, unless
21 there is created a duplication in numbering, reads as follows:

22 This act shall be known and may be cited as the "Oklahoma
23 Biosolids Land Application Research Pilot Program Act".
24

SECTION 6. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 2-10-1121 of Title 27A, unless there is created a duplication in numbering, reads as follows:

A. There is hereby created at Oklahoma State University (OSU) the Oklahoma Biosolids Land Application Research "Pilot Program". The Pilot Program shall be administered by the Department of Environmental Quality (DEQ) in cooperation with the Division of Agricultural Sciences and Natural Resources in coordination with the OSU College of Engineering, Architecture and Technology, the OSU Department of Environmental Science, and the Cooperative Extension Service. The Pilot Program shall operate for an initial five-year period.

B. The Pilot Program shall:

1. Identify and approve study plots on agricultural lands, including, but not limited to, OSU-owned research farms and, as appropriate, cooperating private farms;

2. Develop biosolids application protocols, including:

- a. nutrient content evaluation,
- b. pathogen and contaminant screening (including perfluoroalkyl and polyfluoroalkyl substances (PFAS), heavy metals, and pharmaceuticals),
- c. application rates, and
- d. soil amendment practices;

1 3. Conduct agronomic research, including crop yield impacts,
2 soil health changes, and nutrient cycling;

3 4. Conduct environmental impact studies, including:

4 a. surface and groundwater monitoring,

5 b. soil residual testing, and

6 c. air quality, odor, and vector considerations;

7 5. Assess regulatory models, including best management
8 practices, permitting options, and compliance structures suitable
9 for Oklahoma;

10 6. Coordinate with the DEQ and may utilize biosolids supplied
11 by Oklahoma municipal wastewater treatment facilities that meet DEQ
12 and Environmental Protection Agency (EPA) standards; and

13 7. Provide outreach and education to Oklahoma farmers,
14 ranchers, conservation districts, and municipalities through OSU
15 Extension programs.

16 C. A report shall be submitted annually to the Governor, the
17 President Pro Tempore of the Oklahoma State Senate, the Speaker of
18 the Oklahoma House of Representatives, and the DEQ regarding
19 findings, data, and recommendations. Annual reports shall be
20 submitted no later than December 1 and include:

21 1. Agronomic outcomes;

22 2. Environmental monitoring results;

23 3. Risk assessments;

24 4. Recommendations for statewide standards or rules; and

1 5. Cost-benefit analysis for farmers and municipalities.

2 D. OSU may partner with private agricultural landowners who
3 volunteer to participate in research trials. OSU shall secure
4 written consent, ensure DEQ compliance, and provide guidelines for
5 application, monitoring, and sampling. No landowner shall be held
6 liable for environmental impacts resulting solely from adherence to
7 OSU protocols developed under the Pilot Program.

8 E. Biosolids applied under the Pilot Program shall be exempt
9 from state permitting otherwise required under environmental or land
10 application rules, only to the extent necessary to conduct
11 controlled research, and only when research protocols meet or exceed
12 DEQ and EPA requirements. OSU shall coordinate with DEQ to ensure
13 proper recordkeeping and transport documentation.

14 F. The Pilot Program may be funded by legislative
15 appropriations, federal research grants, municipal contributions,
16 private or industry research partnerships, or in-kind contributions
17 of biosolids or laboratory services. Funds for administering the
18 Pilot Program shall be deposited into the Oklahoma Biosolids Land
19 Application Research Pilot Program Act Revolving Fund created in
20 Section 3 of this act.

21 SECTION 7. NEW LAW A new section of law to be codified
22 in the Oklahoma Statutes as Section 2-10-1122 of Title 27A, unless
23 there is created a duplication in numbering, reads as follows:

1 There is hereby created in the State Treasury a revolving fund
2 for the Department of Environmental Quality to be designated the
3 "Oklahoma Biosolids Land Application Research Pilot Program Act
4 Revolving Fund". The fund shall be a continuing fund, not subject
5 to fiscal year limitations, and shall consist of all monies received
6 by the Department from appropriations, apportionments, donations,
7 and federal grants received for the purpose of conducting the
8 provisions of the Oklahoma Biosolids Land Application Research Pilot
9 Program created pursuant to Section 2 of this act. All monies
10 accruing to the credit of the fund are hereby appropriated and may
11 be budgeted and expended by the Department for the purpose provided
12 for in this section. Expenditures from the fund shall be made upon
13 warrants issued by the State Treasurer against claims filed as
14 prescribed by law with the Director of the Office of Management and
15 Enterprise Services for approval and payment.

16 SECTION 8. This act shall become effective November 1, 2026.
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1 Passed the House of Representatives the 11th day of March, 2026.

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3 _____
4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the _____ day of _____, 2026.

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8 _____
9 Presiding Officer of the Senate